



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

APR 7 2000

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11767

EXPIRATION DATE: March 31, 2002

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Ausimont USA, Inc
Thorofare, NJ
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the transportation in commerce of certain DOT Specification 51 portable tanks containing a mixture of 55% tetrafluoroethylene and 45% hydrochloric acid, classed as a Division 2.1 material. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.315(a) in that the commodity is not authorized in a DOT Specification 51 portable tank, and § 178.245-3 in that the portable tank design pressure is less than the vapor pressure of the lading at 46°C.
5. BASIS: This exemption is based on the application of Ausimont USA, Inc. dated September 3, 1996, and supplemental information dated April 8 and July 31, 1997, July 29, 1999, January 12 and March 14, 2000, submitted in accordance with § 107.105 and the public proceeding thereon.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identification Number
Liquefied gas, flammable, n.o.s. (mixture of 55% tetrafluoroethylene and 45% hydrochloric acid)	2.1	UN3161

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is an insulated DOT Specification 51 steel portable tank mounted in an ISO frame having a design pressure of 500 psig which is constructed and maintained in accordance with the application for exemption, technical specifications and Owens Fabrication Drawing No. D-84-192, on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA). Each tank must be insulated with at least 5 inches of foam thickness and covered with an aluminum cladding. The tank is fitted with a spring-loaded pressure relief valve with a start-to-discharge pressure of 530 psig and must be equipped with a refrigeration system that controls lading temperature.

b. TESTING - The portable tank must be retested and reinspected at least once every five years as specified for DOT Specification 51 portable tanks in § 173.32(e).

c. OPERATIONAL CONTROLS -

- (1) Loading temperature must not exceed -5°C.
- (2) During transport, the lading temperature must be controlled and may not exceed -5°C.
- (3) The shipper must provide detailed emergency response information to each carrier involved in the shipment.

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(4) Before transportation in an empty condition, each tank must be free of liquid content. In addition, the vapor pressure must be so reduced as to avoid the possibility of venting en route.

8. SPECIAL PROVISIONS:

a. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

b. MARKING: Each portable tank must be plainly marked on both sides near the middle, in letters and numerals at least two inches high on a contrasting background, "DOT-E 11767."

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and cargo vessel. Highway transportation must be by private or contract carrier.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



Robert A. McGuire
Acting Associate Administrator for
Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, S.W., Washington, DC 20590-0001, Attention: Records Center, 202-366-5046.

PO: PTolson